

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----
MICHAEL ELLMAN,

Plaintiff,

-against-

CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, NEW YORK CITY
POLICE DETECTIVE RAYMOND LOW, NEW
YORK CITY POLICE OFFICER UNDERCOVER
C-0091, NEW YORK CITY POLICE OFFICER
UNDERCOVER 0072, and "JOHN DOES 1-2",
PERSONS EMPLOYED BY NEW YORK CITY
POLICE DEPARTMENT,Defendants.

x

SUMMONS

:

Index No.: _____

:

Date Filed: _____

:

Plaintiff designates
New York County
as the place of trial

:

The basis of venue is
CPLR § 504(3)

:

:

x

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: New York, New York
April 4, 2016Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
MICHAEL ELLMAN
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7042-NN

Defendants' Addresses:

CITY OF NEW YORK, Claim No.: 2015PI020471

NEW YORK CITY POLICE DEPARTMENT

NEW YORK CITY POLICE DETECTIVE RAYMOND LOW, SHIELD # 4743 of NBMN

NEW YORK CITY POLICE OFFICER UNDERCOVER C-0091, SHIELD # 0091 of NBMN

NEW YORK CITY POLICE OFFICER UNDERCOVER 0072, SHIELD # 0072 of NBMN

MICHAEL ELLMAN,	:	X
	:	<u>VERIFIED COMPLAINT</u>
Plaintiff,	:	Index No.:
	:	
-against-	:	
	:	
CITY OF NEW YORK, NEW YORK CITY	:	
POLICE DEPARTMENT, NEW YORK CITY	:	
POLICE DETECTIVE RAYMOND LOW, NEW	:	
YORK CITY POLICE OFFICER UNDERCOVER	:	
C-0091, NEW YORK CITY POLICE OFFICER	:	
UNDERCOVER 0072, and "JOHN DOES 1-2",	:	
PERSONS EMPLOYED BY NEW YORK CITY	:	
POLICE DEPARTMENT,	:	
	:	
Defendants.	:	X

1. At all relevant times, Plaintiff was and is a resident of the County of New York, City and State of New York.
2. At all relevant times, Defendant CITY OF NEW YORK (hereinafter the “CITY”) was and is a municipal corporation incorporated and existing under the laws of New York State.

3. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (hereinafter "NYPD") was and is an agency of Defendant CITY.
4. At all relevant times, Defendant CITY operated, and presently operates Defendant NYPD.
5. At all relevant times, Defendant CITY controlled, and presently controls Defendant NYPD.
6. At all relevant times, Defendant CITY managed, and presently manages Defendant NYPD.
7. At all relevant times, Defendant NEW YORK CITY POLICE DETECTIVE RAYMOND LOW, SHIELD # 4743 of NBMN (hereinafter "DETECTIVE LOW") was and is an employee of Defendant NYPD.
8. At all relevant times, Defendant DETECTIVE LOW was and is an employee of Defendant CITY.
9. At all relevant times, Defendant NEW YORK CITY POLICE OFFICER UNDERCOVER C-0091, SHIELD # 0091 of NBMN (hereinafter "UNDERCOVER C-0091") was and is an employee of Defendant NYPD.
10. At all relevant times, Defendant UNDERCOVER C-0091 was and is an employee of Defendant CITY.
11. At all relevant times, Defendant NEW YORK CITY POLICE OFFICER UNDERCOVER 0072, SHIELD # 0072 of NBMN (hereinafter "UNDERCOVER 0072") was and is an employee of Defendant NYPD.
12. At all relevant times, Defendant UNDERCOVER 0072 was and is an employee of Defendant CITY.

13. At all relevant times, Defendants JOHN DOES 1-2 were and are employees of Defendant NYPD.
14. At all relevant times, Defendants JOHN DOES 1-2 were and are employees of Defendant CITY.
15. At all relevant times, Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 were acting within their scope of employment as police officers employed by Defendant NYPD.
16. At all relevant times, Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 were acting within their scope of employment as police officers employed by Defendant CITY.
17. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2, prior to August 9, 2014, were each individually hired, screened, trained, and supervised by Defendant CITY, including its agencies and including the Defendant NYPD and all supervisory officers of the aforementioned Defendant officers.
18. On or about July 8, 2015, Plaintiff filed a Notice of Claim (*see* Exhibit “A” annexed hereto) in accordance with General Municipal Law Sections 50(e) and (i). The Notice of Claim set forth the name and address of Plaintiff, his attorneys, the nature of the claim, the time and place where it arose, and the items and amounts of damages claimed.
19. A hearing was conducted pursuant to General Municipal Law Section 50(h) on or about February 17, 2016.

20. At least thirty (30) days has passed since service of the Notice of Claim, and payment of the claim has been either refused or neglected.
21. This action is being commenced within one year of the dismissal of all criminal charges against Plaintiff on April 21, 2015.
22. On or about August 9, 2014, at or near 14 East 119th Street, in the County and State of New York at approximately 9:00 p.m., Plaintiff was unlawfully arrested by Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 in the course of a buy-and-bust operation.
23. Thereafter, Defendants commenced a prosecution against Plaintiff (Docket Number 2014NY061532) without probable cause or justification, for Criminal Sale of a Controlled Substance in the Third Degree (NYPL § 220.39(1)).
24. Said prosecution was instituted and continued with malice, bad faith and deliberate indifference to Plaintiff's rights.
25. Said prosecution caused Plaintiff to appear in court on numerous occasions and to be incarcerated for a period of approximately seven (7) months, from August 10, 2014 to March 31, 2015, when Plaintiff made bail.
26. Plaintiff was acquitted and the action was dismissed and sealed on April 21, 2015 by the Honorable Fitzgerald, D., of New York County Supreme Court.
27. As a result of Defendants' actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE IMPRISONMENT**

28. The allegations set forth in paragraphs “1” through “27” inclusive are incorporated herein as if fully set forth.
29. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 intended to cause the arrest, seizure and imprisonment of Plaintiff without any warrant, order or other legal process, and wrongfully and unlawfully imprisoned Plaintiff.
30. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 restrained Plaintiff and his liberty and took him into police custody, then charged Plaintiff with, and prosecuted Plaintiff for, a crime he did not commit.
31. Plaintiff was thereafter incarcerated for the pendency of the prosecution against him until he was able to make bail, for a period of approximately seven (7) months, from August 10, 2014 to March 31, 2015.
32. Defendants knew, or should have known, that the conduct engaged in would result in the wrongful and unlawful imprisonment of Plaintiff.
33. Plaintiff was aware of the confinement and did not consent to said confinement.
34. The aforementioned confinement was not privileged in any way and was without legal justification.
35. Defendants CITY and NYPD are responsible and liable for the acts of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 done within the scope of their employment under the doctrine of *respondeat superior*.

36. As a direct and proximate cause of Defendants' wrongful and unlawful imprisonment of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
37. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

38. The allegations set forth in paragraphs "1" through "37" inclusive are incorporated herein as if fully set forth.
39. Defendants arrested Plaintiff and initiated criminal proceedings against Plaintiff despite the knowledge that Plaintiff had not committed the crime. Said prosecution was unreasonably instituted and continued with malice, bad faith and deliberate indifference to Plaintiff's rights.
40. There was no probable cause for the aforesaid criminal proceedings.
41. Said malicious prosecution was terminated in favor of Plaintiff with all charges against Plaintiff being dismissed on April 21, 2015.
42. As a direct and proximate cause of Defendants' malicious prosecution of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the

jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

43. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
NEGLIGENT/INTENTIONAL INFLECTION
OF EMOTIONAL DISTRESS**

44. The allegations set forth in paragraphs "1" through "43" inclusive are incorporated herein as if fully set forth.
45. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 engaged in extreme and outrageous conduct throughout the course of the arrest, seizure, false imprisonment and malicious prosecution of Plaintiff.
46. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 acted negligently and in reckless disregard for the procedures and safeguards, which are the standard for the imprisonment of a citizen, in causing Plaintiff to be confined in the absence of his consent or legal justification.
47. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 further breached their duty of care to investigate before affecting the seizure of a citizen and in their continued malicious prosecution of Plaintiff.

48. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 caused Plaintiff to fear for his safety during the course of the aforesaid extreme and outrageous conduct.
49. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 knew, or should have known, that the extreme and outrageous conduct engaged in would result in injury to Plaintiff.
50. Said extreme and outrageous conduct exceeded all bounds usually tolerated by a decent society.
51. The aforesaid extreme and outrageous conduct was performed with the intent to cause, or disregard of a substantial probability of causing severe emotional distress to Plaintiff.
52. Such extreme and outrageous conduct caused Plaintiff to suffer severe and debilitating mental anguish and emotional distress which had a disabling effect.
53. Defendants CITY and NYPD are responsible for and liable for the acts of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 done within the scope of their employment through the doctrine of *respondeat superior*.
54. As a direct and proximate cause of Defendants' negligent and intentional infliction of emotional distress of Plaintiff, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

55. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders the Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION**

56. The allegations set forth in paragraphs “1” through “55” inclusive are incorporated herein as if fully set forth.
57. That Defendants CITY and NYPD failed to exercise reasonable care in hiring Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2; therefore, breaching their duty to Plaintiff as well as to the public, to exercise reasonable care in their hiring of employees.
58. That Defendants CITY and NYPD should have known of the propensity of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 to commit injurious acts.
59. That Defendants CITY and NYPD were negligent in failing to properly train and supervise its employees, more specifically Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2.
60. That Defendants CITY and NYPD are responsible and liable for the acts of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 done within the scope of their employment under the doctrine of *respondeat superior*.
61. As a result of Defendants’ actions, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering,

humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

62. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
NEGLIGENCE**

63. The allegations set forth in paragraphs "1" through "62" inclusive are incorporated herein as if fully set forth.
64. Defendants' actions in causing the aforesaid arrest, seizure, imprisonment and malicious prosecution of Plaintiff were in breach of the duty of due care owed to Plaintiff.
65. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 acted negligently and in disregard for the procedures and safeguards, which are the standard for the imprisonment of a citizen, in causing Plaintiff to be confined in the absence of his consent or legal justification.
66. Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 further breached their duty of care to investigate before affecting the seizure of a citizen and in their continued prosecution of Plaintiff.
67. Defendants CITY and NYPD are responsible and liable for the acts of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN

DOES 1-2 done within the scope of their employment under the doctrine of *respondeat superior*.

68. As a direct and proximate cause of Defendants' negligence, Plaintiff was caused to suffer significant, severe, painful and permanent personal injuries, psychological and emotional suffering, humiliation, embarrassment and fear, all of which continue until this day in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.
69. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
VIOLATION OF THE UNITED STATES CONSTITUTION
42 U.S.C. § 1983 AND NEW YORK CONSTITUTION**

70. The allegations set forth in paragraphs "1" through "69" inclusive are incorporated herein as if fully set forth.
71. As a direct result of the acts, omissions, and policies of Defendants DETECTIVE LOW, UNDERCOVER C-0091, UNDERCOVER 0072, and JOHN DOES 1-2 acting under color of State Law caused Plaintiff, a citizen of the United States and resident of the State of New York, to be deprived of his rights, privileges, and immunities guaranteed under the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution and 42 U.S.C. § 1983.
72. The above actions of Defendants resulted in Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from unlawful seizure;

- b. Freedom from malicious prosecution;
 - c. Freedom from unlawful imprisonment;
 - d. Freedom from loss of liberty.
73. Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights protected under the First, Fourth, Fifth, Eighth and Fourteenth Amendments of the United States Constitution.
74. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under Article 1, Section 8 of the New York Constitution.
75. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under Article 1, Section 12 of the New York Constitution.
76. As a direct result of the acts, omissions, and policies of Defendants, Plaintiff was deprived of his rights, privileges, and immunities guaranteed under New York Common Law to be free from false imprisonment and malicious prosecution.
77. As a direct and proximate cause of Defendants' violations of the United States Constitution 42 U.S.C. § 1983 and New York Constitution, Plaintiff was caused to suffer great pain and mental anguish, great humiliation and fear, and further pecuniary damages and legal costs in an amount that exceeds the jurisdictional limitation of all lower courts and in an amount to be determined at a trial of this action.

78. The conduct of Defendants set forth above and complained of herein exhibited such a high degree of moral culpability that it renders Defendants liable to Plaintiff for punitive damages, and for Plaintiff's attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, Plaintiff demands judgment against Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NEW YORK CITY POLICE DETECTIVE RAYMOND LOW, SHIELD # 4743 of NBMN, NEW YORK CITY POLICE OFFICER UNDERCOVER C-0091, SHIELD # 0091 of NBMN, NEW YORK CITY POLICE OFFICER UNDERCOVER 0072, SHIELD # 0072 of NBMN, and "JOHN DOES 1-2", PERSONS EMPLOYED BY NEW YORK CITY POLICE DEPARTMENT individually and collectively, on all causes of action, in an amount which exceeds the jurisdictional limits of all lower courts and in an amount to be determined at the trial of this action, together with all costs and interest, and for such other relief as this Court may deem just and proper.

Dated: New York, New York
April 4, 2016



Philip V. Aiello
ATESHOGLU & AIELLO, P.C.
Attorneys for Plaintiff
MICHAEL ELLMAN
11 Park Place, Suite 1715
New York, New York 10007
(212) 545-1740
File No.: FA-7042-NN

VERIFICATION

STATE OF NEW YORK)
 S.S.:
COUNTY OF NEW YORK)

Michael Ellman, being duly sworn deposes and says that deponent is the Plaintiff in the within action; that deponent has read the foregoing Complaint and knows the contents thereof, and that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes them to be true.



Michael Ellman

Sworn to before me this
6 day of April, 2016



Notary Public

PHILIP AIELLO
Notary Public, State of New York
No. 02A15076944
Qualified in Rockland County
Commission Expires April 28, 2019